

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 10, 2025 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	25CV457167	Gita Punambhai Patel v. Sunil Garg et al.	Demurrer: in light of the notice of bankruptcy stay filed by plaintiff on Friday, June 6, 2025, this demurrer is now OFF CALENDAR, even though the court already prepared a tentative ruling. Click on LINE 1 or scroll down for the original tentative ruling, which will <u>not</u> be entered by the court (but which will be revived if the case is unstayed). The court vacates all hearing dates and sets a case status review re: bankruptcy on December 18, 2025 at 10:00 a.m. in Department 10.
LINE 2	24CV443624	Jose Torres Garcia v. Gardner Family Health Network, Inc. et al.	Click on LINE 2 or scroll down for ruling in lines 2-3.
LINE 3	24CV443624	Jose Torres Garcia v. Gardner Family Health Network, Inc. et al.	Click on LINE 2 or scroll down for ruling in lines 2-3.
LINE 4	20CV369778	Jane Doe v. East Side Union High School District	Motion to be relieved as counsel: <u>parties to appear</u> .
LINE 5	21CV381717	Jonathan Maldonado v. Aniceto Alva	Click on LINE 5 or scroll down for ruling.
LINE 6	22CV397671	George Soliman v. Mohammed Bhuiyan et al.	Click on LINE 6 or scroll down for ruling.
LINE 7	22CV405701	John Holder et al v. Matthew Westley et al.	Click on LINE 7 or scroll down for ruling.

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Calendar Line 1

Case Name: *Gita Punambhai Patel v. Sunil Garg et al.*

Case No.: 25CV457167

I. BACKGROUND

This is a quiet title action by plaintiff Gita P. Patel, a self-represented litigant, against multiple defendants, including both individuals and financial institutions.

According to the first amended complaint (“FAC”), Patel is the sole legal and equitable owner of real property located at 5911 Killarney Circle in San Jose, California (the “Subject Property”). (FAC, p. 2.)¹ She acquired the Subject Property on February 26, 1999. (*Ibid.*) On July 20, 2012, she transferred title to Gita Patel, Trustee of the Gita Patel Trust (created on July 18, 2012). (*Ibid.*) Patel alleges that the defendants made public filings alleging an interest in the Subject Property based upon void contracts. (FAC, p. 4.) She also alleges that certain “Defendant(s)” (unspecified) made certain fraudulent misrepresentations while she obtained a loan on the Subject Property. (*Id.* at pp. 4-6.) Finally, Patel claims that she unknowingly entered into a loan agreement with an (unnamed) defendant and that any such contract is void. (*Id.* at pp. 6-11.)

On January 24, 2025, Patel filed her original complaint against all the defendants, setting forth causes of action for: (1) quiet title; (2) void contract; (3) legal right to quiet title, nunc pro tunc; and (4) “the tort claim.” Five days later, on January 29, 2025, Patel filed the operative FAC alleging the same causes of action.

On March 11, 2025, defendant McCarthy & Holthus, LLP (“McCarthy”), a law firm, filed the present demurrer to the FAC. On April 14, 2025, Patel submitted a “consolidated opposition to all demurrers,” which responds to McCarthy’s demurrer as well as demurrers by various other defendants. (Those other demurrers are currently set to be heard on other dates in the future.)

On March 28, 2025, Patel filed a motion for leave to file a second amended complaint (“SAC”), which is scheduled for hearing on July 10, 2025.

II. DEMURRER TO THE FAC

McCarthy argues that the FAC is subject to demurrer on the grounds of failure to state a cause of action and uncertainty. (Code Civ. Proc., § 430.10, subs. (e), (f).)

A. Request for Judicial Notice

Within her opposition, Patel has requested judicial notice of various court records and exhibits. (Opposition, pp. 4-5.) “Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter.” (*Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117.)

¹ The FAC lacks paragraph numbers, and so the court cites page numbers.

Patel's request is procedurally improper, as it does not comply with rule 3.1113(l) of the California Rules of Court, which provides: "Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c)." Here, the request for judicial notice is embedded within the opposition, not set forth in the required separate document. Also, even though Patel represents that the exhibits are attached to her declaration (see Patel Decl., ¶ 9), they are not. And to the extent that Patel requests judicial notice of her SAC, there is no such court filing. As noted above, Patel has filed a motion for *leave* to file an SAC, and her proposed pleading is an exhibit to that motion, rather than a separately noticeable document. The court may take judicial notice of the fact that the motion for leave to file an SAC has been filed, but it does not take judicial notice of the contents of the motion itself.

Finally, because judicial notice is a substitute for proof, it is always confined to those matters that are relevant to the issue at hand. (*Gbur v. Cohen* (1979) 93 Cal.App.3d 296, 301.) In opposition, Patel fails to explain how the exhibits she has identified will help resolve the issues raised by McCarthy's demurrer. As such, judicial notice is not warranted. (See *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [a court need not take judicial notice of a matter unless it "is necessary, helpful, or relevant"].)

The court denies the request for judicial notice.

B. Legal Standard

A complaint must contain substantive factual allegations sufficiently apprising the defendant of the issues to be addressed. (See *Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) "In reviewing the sufficiency of a complaint against a general demurrer, we are guided by long settled rules. 'We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed.' [Citation.] Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation.]" (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

"It is not the ordinary function of a demurrer to test the truth of the plaintiff's allegations or the accuracy with which [she] describes the defendant's conduct. A demurrer tests only the legal sufficiency of the pleading. [Citation.] [Citation.] In reviewing the ruling on a demurrer, 'the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]' [Citation.] 'To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. [Citation.]' [Citation.] A complaint's allegations are construed liberally in favor of the pleader. [Citations.]" (*Ferrick v. Santa Clara University* (2014) 231 Cal.App.4th 1337, 1341.)

Additionally, "it is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory. [Citation.] And it is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.' [Citations.]" (*Gregory v. Albertson's, Inc.* (2002) 104 Cal.App.4th 845, 850.)

C. Failure to State a Cause of Action

“The absence of any allegation essential to a cause of action renders it vulnerable to a general demurrer. A ruling on a general demurrer is thus a method of deciding the merits of the cause of action on assumed facts without a trial.’ [Citation.] ‘Conversely, a general demurrer will be overruled if the complaint contains allegations of every fact essential to the statement of a cause of action, regardless of mistaken theory or imperfections of form that make it subject to special demurrer.’ [Citation.]” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 291-292 (*Morris*).)

“A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ [citation] and will be upheld “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.” [Citation.] ‘[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.’ [Citation.]” (*Morris, supra*, 78 Cal.App.5th at p. 292.)

1. First Cause of Action: Quiet Title

“A quiet title action is a statutory action that seeks to declare the rights of the parties in realty. [Citations.] ““The object of the action is to finally settle and determine, as between the parties, all conflicting claims to the property in controversy, and to decree to each such interest or estate therein as he may be entitled to.”” [Citation.] The purpose of a quiet title action is to determine any adverse claim to the property that the defendant may assert, and to declare and define any interest held by the defendant, “so that the plaintiff may have a decree finally adjudicating the extent of his (or her) own interest in the property in controversy.” [Citation.]” (*Robin v. Crowell* (2020) 55 Cal.App.5th 727, 740.)

“In order to quiet title, a plaintiff’s complaint ‘must include’ all of the following as elements of the claim: (1) a description of the property that is the subject of the action; (2) the title of the plaintiff as to which a determination is sought and the basis of the title; (3) ‘[t]he adverse claims to the title of the plaintiff against which a determination is sought’; (4) the date as of which the determination is sought; and (5) a prayer for the determination of plaintiff’s title ‘against the adverse claims.’ [Citation.]” (*Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 294.) In addition, a complaint alleging a quiet title cause of action must be verified. (Code Civ. Proc., § 761.020.)

In this case, the first cause of action and the incorporated allegations of the FAC state that Patel is “the 100% owner of the Subject Property and Defendant(s) have no right or cause to be made any defects or clouds on the Plaintiff, the Plaintiff’s property or rights/interest to the property.” (*Ibid.*) Despite these allegations, McCarthy argues persuasively there is no cause of action properly stated against it. There are no allegations that McCarthy has any interest in the Subject Property that is adverse to Patel. Nor does the FAC provide the date as of which a determination of title is sought. In fact, McCarthy is not named in any factual allegation within the first cause of action.

Accordingly, the court sustains McCarthy’s demurrer to the first cause of action.

2. Second Cause of Action: The Void Contract

The second cause of action is identified as a claim for “the void contract.” According to the FAC, the contract is void because: (1) there was no mutual consent, offer, acceptance, and consideration; (2) it is unfair and oppressive to Patel; (3) Patel was unduly influenced by “Defendant(s)”; and (4) there is unlawful usury being charged by “Defendant(s).” (See FAC, pp. 8-11.)

As a preliminary matter, it is not clear if this cause of action is intended to be one for *breach* of contract or for *cancellation* of a written instrument.

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Under Civil Code section 3412, “[a] written instrument, in respect to which there is a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable, may, upon his application, be so adjudged, and ordered to be delivered up or canceled.” “To prevail on a claim to cancel an instrument, a plaintiff must prove (1) the instrument is void or voidable due to, for example, fraud, and (2) there is a reasonable apprehension of serious injury including pecuniary loss or prejudicial alteration of one’s position.” (*U.S. Bank National Association v. Naifeh* (2016) 1 Cal.App.5th 767, 778.)

As pointed out by McCarthy in its demurrer, there are no factual allegations connecting McCarthy to any contract or written instrument, and therefore to any aspect of the second cause of action. (See Demurrer, p. 4.) The court sustains McCarthy’s demurrer to the second cause of action for failure to state sufficient facts.

3. Third Cause of Action: Legal Right to Quiet Title, Nunc Pro Tunc

The demurrer to the third cause of action is sustainable for the same reasons stated above in connection with the first cause of action. A cause of action to quiet title and a cause of action for a “legal right to quiet title” are the same thing.

4. Fourth Cause of Action: The Tort Claim

The fourth cause of action is identified simply as “the tort claim” and alleges, in part:

Defendant(s) deceived Plaintiff into giving an “agency/trustee” position in trust using Plaintiff’s note/property for self-enrich purposes of investment options using Plaintiff’s note/property. In order to keep or receive all investment profits for themselves by deceptively failing to disclose said trust creation and trustee intentions with Plaintiff’s note/property at the time of the agreement as evidenced with SEC and other government public filings of Defendant(s).

(FAC, p. 13 [syntax unaltered].) The fourth cause of action further alleges:

The injuries sustained by Plaintiff by the Defendants are a direct result of the Defendants[’] breach of duty, negligence, actions, lack of actions, or duties to

disclose and/or perform under state and federal law as well as the now void contract.

(*Ibid.*)

As McCarthy notes, Patel does not identify the tort underlying the fourth cause of action. (See Demurrer at p. 4.) It appears that Patel may be seeking relief on the basis of either fraud or negligence, or both.

“The essential elements of fraud that give rise to a cause of action for deceit or intentional misrepresentation are: (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) actual and justifiable reliance; and (e) resulting damage.” (*Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1268.) “Fraud must be pleaded with specificity rather than with “general and conclusory allegations.” [Citation.] The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made. [Citation.]” (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793 (*West*)). Courts enforce the specificity requirement in consideration of its two purposes. (*Ibid.*) The first purpose is to give notice to the defendant of sufficiently definite charges so that the defendant can meet them. The second is to permit a court to weed out meritless fraud claims on the basis of the pleadings; thus, the pleading should be sufficient to enable the court to determine whether, on the facts pleaded, there is any prima facie foundation for the charge of fraud. (*Ibid.*)

As for negligence, “[t]he elements of a negligence cause of action are duty, breach, causation and damages.” (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

As with Patel’s other causes of action, there are no specific factual allegations to support the elements of either fraud or negligence described above. Nor does the fourth cause of action include any factual allegations to support a fraud or negligence theory of liability specifically against McCarthy.

Consequently, the court sustains the demurrer to the fourth cause of action for failure to state sufficient facts.

D. Uncertainty

As a general matter, “demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695, internal quotation marks and citations omitted.) “The label given a petition, action or other pleading is not determinative; rather, the true nature of a petition or cause of action is based on the facts alleged and remedy sought in

that pleading. [Citations.]” (*Escamilla v. Department of Corrections & Rehabilitation* (2006) 141 Cal.App.4th 498, 511.)

Notwithstanding the general rule disfavoring demurrers for uncertainty, the court finds that the FAC is uncertain—*i.e.*, that it is “so incomprehensible that [McCarthy] cannot reasonably respond.” First, as already noted above, it does not include any specific allegations about McCarthy for any of its causes of action. The ambiguous reference to “Defendant(s)” throughout the FAC is unhelpful, given that Patel has sued at least 15 other defendants without properly differentiating between them. Second, as also noted above, the FAC does not specify the “contract” (or contracts) at issue or the “tort claim” that is being alleged. As such, it is so unclear and indecipherable as to be subject to a demurrer under Code of Civil Procedure section 430.10, subdivision (f).

E. Patel’s Opposition

In her opposition, Patel’s sole substantive argument is that the demurrer is moot based on the filing of her SAC. (See Opposition, pp. 5-6.) But the SAC has not actually been filed yet; as explained above, there is only a motion for leave, which is not scheduled to be heard until next month. Although the interests of judicial economy would undoubtedly be served if these issues (along with the demurrers filed by the other defendants) could all be heard together, the court does not yet have any oppositions to the motion for leave or the other demurrers, and no one asked the court to consolidate hearing dates in advance. The present demurrer by McCarthy does not address the SAC for the obvious reason that the demurrer was filed before Patel submitted her motion for leave.

Accordingly, the court will sustain the demurrer under Code of Civil Procedure section 430.10, subdivisions (e) and (f), and grant an extended period of time for leave to amend—until 10 days *after* the July 10, 2025 hearing on the motion for leave to file an SAC. In other words, Patel shall have until July 21, 2025 to file a further amended complaint (July 20 being a Sunday). The court requests that any party opposing the motion for leave address in their opposition brief whether the SAC resolves the pleading defects identified in this order.

III. DISPOSITION

Patel’s request for judicial notice is DENIED.

The demurrer to the FAC is SUSTAINED with leave to amend—Patel shall have until **July 21, 2025** to file an amended pleading that cures the defects identified herein.

The July 10, 2025 hearing on the motion for leave to file an SAC remains as set. In addition, the other hearings currently calendared for September 10, September 16, and December 9, 2025 will remain as set.

Finally, because the court anticipates the filing of an amended pleading, the August 21 and October 23, 2025 hearings on the demurrers to the FAC filed by other defendants are hereby VACATED. The court requests that the parties attempt to meet and confer to coordinate hearing dates on any future pleading challenges. Alternatively, if they are unable to obtain a common date, they can bring a subsequent ex parte application with the court to consolidate hearing dates. That would be an appropriate use of the ex parte procedure, unlike the many other ex parte applications that have already been filed and denied in this case.

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Calendar Lines 2-3

Case Name: *Jose Torres Garcia v. Gardner Family Health Network, Inc. et al.*

Case No.: 24CV443624

Before the court are two competing discovery motions: plaintiff Jose Torres Garcia's motion for a protective order to limit the number of special interrogatories, and defendants Gardner Family Health Network, Inc ("Gardner") and Maribel Montanez's (collectively, "Defendants") motion to compel responses to special interrogatories and further responses to form interrogatories. The protective order motion was originally noticed for a hearing on May 27, 2025, and the motion to compel was originally noticed for a hearing on July 1, 2025. At a case management conference in late February, the court decided that it would hear the motions together on June 12, 2025, given the obvious overlap between them.

The court addresses the protective order motion first.

1. Motion for Protective Order to Limit the Number of Special Interrogatories

Defendants have propounded 526 special interrogatories on Torres Garcia—two sets of 263 identical interrogatories by each of Gardner and Montanez. Torres Garcia argues that the burden or expense of responding to this many special interrogatories "clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.020, subd. (a).) The court tends to agree, although the court finds that both sides' actions and arguments related to this discovery dispute leave much to be desired.

This is not a complex case. This is a single-employee employment dispute. It is difficult to conceive of any set of circumstances under which two sets of 263 special interrogatories could be considered a reasonable number, given that the statutorily presumptive limit for an unlimited civil case is 35. Of course, a party may go beyond the presumptive limit if there is good cause to do so, but regardless of the grounds here, they do not support going more than seven and a half times beyond a typical civil case. Although the court agrees with Defendants that the assertion of 17 causes of action in the complaint appears to be excessive, even that does not justify this many special interrogatories. These special interrogatories were apparently created by mechanically going through each factual allegation or phrase in the complaint and then asking the same three questions about that allegation or phrase. Although a party is certainly entitled to ask contention interrogatories, the foregoing rote approach does not reflect a judicious and well-thought-out use of the discovery tools at a party's disposal. These special interrogatories could have been generated by a machine rather than a human being.

In addition, there is no apparent reason why Montanez would need to propound exactly the same interrogatories as Gardner on Torres Garcia. Although Defendants are correct that the causes of action that have been asserted against each of them do not necessarily constrain the scope of the interrogatories that they may propound against a plaintiff (contrary to Torres Garcia's argument here), that does not mean that they need to duplicate the same interrogatories. Doing so is unnecessarily wasteful and supports the perception that Defendants are trying to overwhelm Torres Garcia with volume rather than trying to advance the truth-seeking purpose of written discovery.

At the same time, the court takes issue with Torres Garcia's failure to respond to any of these interrogatories in a timely manner. Normally, if a party objects to the number of interrogatories propounded by an opponent, that party must still respond to at least the first 35. As Defendants rightly note: "[I]f Plaintiff objected to the number of Special Interrogatories made, that does not mean Plaintiff can wholly disregard [his] duty to respond to discovery – at a minimum, he is required to respond to the first 35 interrogatories in each set." (Opposition to Motion for Protective Order, p. 13:17-20.) Moreover, Defendants also correctly note—and Torres Garcia readily admits—that he missed the original deadline for responding to these interrogatories and for filing the present motion. Thus, Torres Garcia's motion is both tardy and indicative of a refusal to comply in good faith with his discovery obligations.

Because of both sides' unhelpful "all or nothing" approach to this discovery, as well as in their briefing, the court is ill-suited to formulating the appropriate number of interrogatories for this case on its own. Nevertheless, the court sees in the meet-and-confer correspondence that on May 27, 2025, Torres Garcia agreed to respond substantively to a set of "166 Special Interrogatories propounded by Defendant Gardner Health" as a compromise position. (Though it also appears that the parties could not agree to a compromise regarding any of Montanez's special interrogatories.) (Declaration of Elen Martirosyan in Opposition to Motion to Compel, Exhibits D & E.) Accordingly, the court hereby orders Torres Garcia to respond substantively to the modified proposed set of 166 special interrogatories from Gardner *within 20 days of this order*. As for Montanez, the court orders Defendants to re-propound no more than 35 *non-duplicative* special interrogatories on Torres Garcia, to which Torres Garcia will then provide timely, substantive responses.

The motion for protective order is GRANTED IN PART and DENIED IN PART. The court DENIES Defendants' request for \$2,080.00 in monetary sanctions.

2. Motion to Compel Responses to Special Interrogatories

For the same reasons just stated, the court GRANTS IN PART and DENIES IN PART Defendants' competing motion to compel. The court DENIES both sides' requests for monetary sanctions.

3. Motion to Compel Further Responses to Form Interrogatories

In their motion to compel, Defendants also seek further responses to employment form interrogatories Nos. 200.1, 200.3, 200.4, 202.1, 203.1, 204.6, 207.1, 207.2, and 217.1 from Torres Garcia. The court addresses these items as follows:

No. 200.1: Torres Garcia's response is code compliant and sufficient. DENIED.

No. 200.3: The response "Unknown to Plaintiff" is insufficient. The interrogatory asks for Torres Garcia's position or contention, and he must provide it. In addition, he must identify any documents that are known to him, unless he does not know of a single document. Torres Garcia must supplement his response with 20 days of this order. GRANTED.

No. 200.4: Torres Garcia's response is code compliant and sufficient. DENIED.

No. 207.1: The court agrees with Torres Garcia that this form interrogatory was designed to be propounded on employers, not employees. DENIED.

Nos 202.1, 203.1, 204.6, 207.2, and 217.1: The court disagrees with Defendants that Torres Garcia is obligated to provide contact information for Gardner's own employees (or former employees). DENIED.

In short, the motion is GRANTED IN SMALL PART and DENIED IN LARGE PART as to the form interrogatories. Again, the court DENIES both sides' requests for monetary sanctions.

It is so ordered.

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Calendar Line 5

Case Name: *Jonathan Maldonado v. Aniceto Alva*

Case No.: 21CV381717

This is a motion for attorney's fees by defendant Aniceto Alva. Plaintiff Jonathan Maldonado opposes and objects to the motion on the ground that his counsel was never properly served. Although there is a proof of service in the file (signed, somewhat unusually, by Alva's counsel himself), Maldonado's counsel submits a declaration stating that their office never received the moving papers, by either regular mail or email. Maldonado therefore requests a continuance "of at least 16 court days" to respond substantively to the motion.

The court has not received a timely reply from Alva.

Rather than try to resolve this factual disagreement between counsel, the court will CONTINUE this motion to July 29, 2025 at 9:00 a.m. in Department 10. Maldonado must file a substantive response to the motion by July 16, 2025.

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Calendar Line 6**Case Name:** *George Soliman v. Mohammed Bhuiyan et al.***Case No.:** 22CV397671

This is a motion for discretionary relief from default by defendant Mohammed Bhuiyan under Code of Civil Procedure section 473, subdivision (b). The court clerk entered default against Bhuiyan on October 31, 2022, but Bhuiyan did not file the present motion until February 20, 2025, nearly two years and four months later. At the time, he was not represented by counsel, so he is unable to bring a motion for mandatory relief based on attorney error. He is therefore constrained by the unforgiving language of the statute, which states that a motion for discretionary relief “shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).)

Plaintiff George Soliman opposes the motion, arguing that two years and four months is well past the statutory deadline. In addition, Soliman emphasizes that Bhuiyan was personally served with the summons and complaint on September 21, 2022, so his claim of lack of notice is not well taken.

The court has no choice but to agree that the motion is untimely, as the six-month time limit is jurisdictional. (See *Rappelyea v. Campbell* (1994) 8 Cal.4th 975, 980-981.) Although the court has the ability in certain circumstances to grant equitable relief upon a showing of extrinsic fraud or mistake (*ibid.*), Bhuiyan has not made such a showing here. In his memorandum, he argues that he “was served with partial and incomplete papers in a manner to confuse him” and “received false information that the matter had been dismissed,” but he does not present any evidence to back up these unexplained allegations—he does not specify exactly what was missing or confusing, and he does not identify how or from whom he received this false information (and exactly what the false information consisted of). (See Declaration of Mohammed Bhuiyan, ¶¶ 4-11.) He claims that he was not served with a request for entry of default, but there are proofs of service in the file, indicating service on October 24, 2022.

The motion is DENIED.

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Calendar Line 7

Case Name: *John Holder et al v. Matthew Westley et al.*

Case No.: 22CV405701

This is a motion for leave to amend the complaint to conform to proof at trial, or alternatively, for leave to file a first amended complaint (“FAC”). Plaintiffs John Holder, Jacqueline Beddingfield, Richard Holder, Robert Holder, Michael Holder, Robert Ramirez, and Roy Scialaba (collectively, “Plaintiffs”) seek to add a cause of action for fraudulent inducement against defendant Matthew Westley. The original complaint, filed on October 14, 2022, asserted only a single cause of action for breach of oral contract. Defendants Matthew Westley and WH Breakfast, Inc. (“WH Breakfast”) (collectively, “Defendants”) oppose the motion.

1. Procedural Background

This case was originally set for trial on April 29, 2024. On April 7, 2024, the court granted the parties’ joint ex parte application to continue the trial date (and all related deadlines), based on the recent service of the summons on defendant WH Breakfast, which had not yet responded to the complaint or otherwise appeared in the case. The court continued the trial to January 6, 2025.

Because of the lack of availability of a civil trial department in this court, the trial was unfortunately unable to go forward on January 6, 2025, and the trial date had to be reset again to July 28, 2025. That is the current trial date, between six and seven weeks from today.

2. Discussion

For the reasons that follow, the court denies the present motion.

Plaintiffs filed this motion on Friday, January 3, 2025, based on the assumption that the trial might begin on Monday, January 6, 2025. Because that did not happen, Plaintiffs’ request to amend the complaint “to conform to proof at trial” is not yet ripe. Without a trial and evidence, there is nothing to “conform to” yet. The court therefore denies that aspect of the motion without prejudice.

As for the request for leave to file an FAC *before* trial, the court finds that the motion is fatally flawed, both procedurally and on the merits.

First, under rule 3.1324(a) of the California Rules of Court, a motion to amend must: “(1) Include a copy of the proposed amendment or amended pleading . . . ; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” Here, the January 3, 2025 notice of motion and motion describes the proposed amendments—specifically, the additions of text in paragraphs 9 and 32-37 of the pleading—and then states that “[a] true and correct copy of the First Amended Complaint is attached hereto as Exhibit A.” But no proposed FAC is actually attached to the motion. Without explanation, on May 14, 2025, Plaintiffs filed an “amended” notice of motion that repeats the description of the proposed amendments (the same paragraphs 9 and 32-37) but then attaches a proposed FAC that contains *totally different language* from

what is described in the notice of motion and motion. The only paragraph that is the same in both the notice of motion and the proposed FAC is paragraph 9 (describing WH Breakfast); paragraphs 32-37 in the notice of motion and in the proposed FAC do not match up at all; the proposed FAC contains 10 additional paragraphs (§§ 38-47) that are not listed anywhere in the notice of motion; and the quoted text in the notice of motion refers to various “Investments” in paragraphs 33 and 34 that appear nowhere in the text of the proposed FAC. None of this is explained in Plaintiffs’ supporting memorandum, and so the motion is impossibly ambiguous and inscrutable. As Defendants point out, “the ‘Investments’ are not identified or explained” (Opposition, p. 2:18), even though these alleged investments seem central to Plaintiffs’ claim of fraudulent inducement, as set forth in the notice of motion. Given the uncertainty inherent in the motion, which arises in large part from Plaintiffs’ failure to comply with rule 3.1324(a), the court must deny the motion.

Second, rule 3.1324(b) requires a supporting declaration that specifies: “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment were not made earlier.” The declaration submitted by counsel fails to address (2), (3), and (4), which is yet another reason why this motion must be denied.

Third, Plaintiffs fail to provide an adequate explanation as to why they waited so long to request this amendment. Defendants note that Plaintiffs conducted the relevant discovery—including the deposition of Westley—nearly two years ago. It appears that all of the facts alleged in the FAC in support of a fraudulent inducement cause of action were already known to Plaintiffs in 2023. In fact, the alleged oral contract that forms the basis of the cause of action in the original complaint is itself the alleged “inducement” that Plaintiffs now contend was fraudulent.

Plaintiffs argue that their motion for leave to amend “was filed in response to Defendants’ amended answer,” which added an affirmative defense of lack of consideration for the oral contract (Reply, p. 1:20), but the court finds this argument to be unpersuasive. The court does not see how the fraudulent inducement cause of action has any bearing on whether there was consideration for the alleged oral contract in this case, and Plaintiffs do not elaborate. In fact, the argument appears to be logically backwards: in the FAC, Plaintiffs allege that Westley entered into an oral contract with them to induce them to enter into a written purchase agreement for the sale of their shares in WH Breakfast. In other words, the *oral contract* was allegedly part of the consideration for the *written stock purchase agreement*, not the other way around. The allegations in the FAC say nothing about whether there was consideration for the oral contract itself.

Moreover, as the court tried to explain in its December 19, 2024 order, even though the court was granting Defendants’ motion for leave to amend their answer at that time, such an amendment was unlikely “unnecessary,” because “it remain[ed] the Plaintiffs’ burden to prove the existence of an oral agreement,” *including the existence of consideration*. (See December 19, 2024 Order, p. 3:1-18.) Thus, the court’s December 19, 2024 ruling did not change Plaintiffs’ burden of proof in any way regarding the breach of contract cause of action, and it therefore cannot have created a basis for now seeking leave to amend the complaint to add a fraud cause of action. Plaintiffs’ opening memorandum and reply brief on this motion completely sidestep the court’s reasoning in the December 19 order.

Fourth, the court finds that the addition of a fraudulent inducement cause of action would fundamentally alter the nature of this case, making it a prejudicial change this close to the trial date. What was originally a contract action would suddenly become both a contract and tort cause of action, with completely different bases for damages, including punitive damages. (Plaintiffs' proposed FAC adds a prayer for punitive damages.) Although the court is not necessarily persuaded by Defendants' argument that they would need to retake all five depositions of the Plaintiffs, the court does find that additional discovery would be needed on Plaintiffs' new fraud theory, including the basis for any compensatory and punitive damages. Compensatory damages for fraudulent inducement could, for example, include *rescission* of the written stock purchase agreements, which is potentially a very different remedy from the compensatory damages that would be sought for a breach of an oral contract. And punitive damages are of course a completely different category of damages, as well.

In addition, Defendants argue that they might also have a challenge to the sufficiency of the pleading—particularly given that it would now encompass fraud allegations. Although the court is not certain that a demurrer would necessarily need to be brought to challenge the sufficiency of the pleading, the court does discern a possible basis for summary adjudication of the new cause of action, given that Plaintiffs' allegations are dependent on a finding that Westley intended to defraud them at the time of the stock purchases. The only evidence the Plaintiffs have submitted in support of the present motion indicates that Westley actually changed his position on the alleged oral agreement *after* he had “spoken with an attorney.” (Reply, p. 4:3-12 [quoting Deposition of John Holder].) In order for Defendants to have an adequate opportunity to bring such a motion, the July 2025 trial date would necessarily have to be reset a *fourth* time.

For all of these reasons, the court DENIES the motion for leave to amend. As noted above, this ruling has no impact on whether any amendment “to conform to proof at trial” might be made in the future.

It is so ordered.

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